

S P Rekha vs K M Santhosh on 27 February, 2023

Author: Alok Aradhe

Bench: Alok Aradhe

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MFA No.5109 of 2016

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 27TH DAY OF FEBRUARY 2023
PRESENT
THE HON'BLE MR. JUSTICE ALOK ARADHE
AND
THE HON'BLE MR. JUSTICE VIJAYKUMAR A PATIL
MISCELLANEOUS FIRST APPEAL NO.5109 OF 2016 (MC)

BETWEEN:

Digitally signed
by RUPA V
Location: High
Court of
Karnataka

1. S.P. REKHA

W/O K.M. SANTHOSH
D/O BASAVANTHAPPA
AGED ABOUT 33 YEARS
R/O 2ND CROSS LEFT
LINGADAHALLI ROAD, BHOVI COLONY
KODICAMP, TARIKERE TOWN
TARIKERE TALUK
CHIKKAMAGALURU DISTRICT-577228.

...APPELLANT

(BY SRI. PRASAD B.S. ADV.,)

AND:

1. K.M. SANTHOSH
S/O K.V. MRUTHYUNJAYA
AGED ABOUT 39 YEARS
AGRICULTURIST
R/O DORANALU VILLAGE
KASABA HOBLI, TARIKERE TALUK

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MFA No.5109 of 2016

CHIKKAMAGALURU DISTRICT-577228.

...RESPONDENT

(BY SRI. M. RUDRAIAH, ADV.,)

THIS MFA IS FILED U/S 28(1) OF THE HINDU MARRIAGE ACT, AGAINST THE JUDGMENT AND DECREE DATED:08.07.2016 PASSED IN M.C.NO.12/2013 ON THE FILE OF THE SENIOR CIVIL JUDGE, & PRINCIPAL JMFC, TARIKERE, ALLOWING THE PETITION FILED U/S 13(1)(ia)(ib) OF THE HINDU MARRIAGE ACT, FOR DECREE OF DIVORCE.

THIS APPEAL COMING ON FOR HEARING, THIS DAY ALOK ARADHE J., DELIVERED THE FOLLOWING:

JUDGMENT

This appeal under Section 28(1) of the Hindu Marriage Act, 1955 (hereinafter referred to as 'the Act' for short) has been filed against the judgment dated 08.07.2016, by which petition filed by the respondent/husband seeking dissolution of marriage on the ground of cruelty and desertion has been allowed.

2. Facts giving rise to filing of this appeal briefly stated are that the marriage between the parties was solemnized on 14.12.2008 at Tarikere as per Hindu rites and rituals. After marriage, the parties started residing together. The appellant gave birth to a son on 16.09.2009.

3. It appears that there was difference of opinion between the parties and therefore, the appellant/wife went to her parents home.

4. The respondent filed a petition under Section 13 of the Act on or about 25.07.2013 inter alia on the ground that the appellant/wife has deserted the respondent since, 16.09.2009 and has not joined the matrimonial home. It was also pleaded that the appellant treated the respondent with mental and physical cruelty and is residing with her parents since June 2009 without any intimation to the respondent

5. The appellant filed statement of objections, in which the factum of marriage as well as the birth of the son was admitted. However, the other contents of the petition were denied. It was also pleaded that the respondent is addicted to several vices and used to come home late. It was also pleaded that the respondent and his family members have not visited the hospital and have not provided the basic necessities to the appellant. It was also averred that the respondent used to ill treat the appellant.

6. The respondent in order prove his case examined himself as PW1 and one more witness viz., Prabhakar as PW2 and exhibited 10 documents viz., Ex.P1 to Ex.P10. The respondent examined herself but did not adduce any documentary evidence. The family court vide judgment dated 08.07.2017 inter alia held that the appellant in her evidence has admitted that she is residing from

the respondent separately from 15.11.2010, whereas, the petition seeking dissolution of marriage has been filed on 28.05.2013. It was further held that the appellant has treated the respondent with mental cruelty. Accordingly, the petition filed by the respondent seeking dissolution of marriage on the ground of desertion and cruelty has been allowed. In the aforesaid factual background, this appeal has been filed.

7. Learned counsel for the appellant submitted that the family court ought to have appreciated that the respondent has not pleaded any specific instances of cruelty and the appellant was forced to leave the matrimonial home. It is also urged that mere living separately does not make out a ground for desertion. On the other hand, learned counsel for the respondent has supported the order passed by the family court. It is submitted that with the consent of the appellant a petition under Section 13(b) of the Act was filed on 16.12.2010. The appellant had agreed for dissolution of marriage subject to permanent alimony of Rs.5 Lakhs. However, subsequently, the appellant did not appear before the family court as a result of which, the petition was dismissed on 07.01.2012. It is urged that the judgment passed by the family court is based on meticulous appreciation of evidence on record and does not call for any interference in this appeal.

8. We have considered the submissions made on both sides and have perused the record. It is well settled in law that a petition seeking decree of divorce on the ground of cruelty should contain specific instances of cruelty (See: NEELAM KUMAR VS. DAYA RANI.)

9. A Five Judge Bench of the Supreme Court in LACHMAN UTAMCHAND KIRIPALANI Vs. MEENA @ MOTA which has been followed in DEBANANDA TAMULI Vs. KAKUMONI KATAKY while dealing with the expression 'desertion', has held that desertion means the intentional abandonment of the spouse by the other without the consent of the other and without a reasonable cause. It has further been held that deserted spouse must prove that there is a factum of separation and there is an intention on the part of deserting spouse to bring the cohabitation to a permanent end. It has also been held that in other words, there should be animus deserendi on the part of the deserting spouse. The issue whether a case of desertion is made out or not, depends on the facts of each case and is a matter of drawing an inference on the basis of evidence on record.

20. In the backdrop of aforesaid well settled legal principles, the averment made in the petition may be seen. From perusal of the averments made in the petition, it is evident that no instance of cruelty have been pleaded except for showing that respondent has treated the appellant with mental cruelty. The aforesaid averment is vague and the averments made in the do not disclose any specific instance of cruelty. The family court however, without appreciating the aforesaid aspect of the matter, in a casual and cavalier manner has granted the decree of divorce on the ground of cruelty.

11. We have carefully gone through the evidence of the appellant, wherein she has stated that she is living away from the respondent since, 15.11.2010. However, the evidence of the appellant does not disclose that she has intentionally abandoned the matrimonial home for a reasonable cause. The respondent has miserably failed to prove the intention on the part of the appellant to bring the cohabitation to a permanent end. There is no animus deserendi on the part of the appellant. Therefore, the family court should not have granted a decree of divorce on the ground of desertion.

For the aforementioned reasons, the judgment and decree passed by the family court cannot be sustained in the eye of law. It is accordingly quashed and set aside. The petition filed by the respondent under Section 13 of the Act is dismissed.

In the result, the appeal is allowed.

Sd/-

JUDGE Sd/-

JUDGE SS